

Madawaska/Edmundston International Bridge and Border Crossing Feasibility and Planning Study

Contractor Information Guide

I created this document from scratch. I was given direction for the research, but all the work is essentially mine. I researched all of the websites and regulations, developed the layout to client specifications, wrote the copy, and linked all of the webpages. There was input after I created the initial draft to add or remove certain details and make sure that all the relevant information was covered. This document became an appendix to the Final Feasibility Study document.

The Madawaska/Edmundston International Bridge and Border Crossing project began in the spring of 2017 and continued through the Feasibility Study to a Draft Supplemental Environmental Impact Statement (SEIS) and Programmatic Section 4(f) Evaluation (2018), a Final SEIS and Programmatic Section 4(f) Evaluation (2019), and a Record of Decision (ROD) (2020).

Contractor Information Guide

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*Madawaska/Edmundston International
Bridge and Border Crossing*

May 2018

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Madawaska, Maine to Edmundston, New Brunswick International Bridge and Border Crossing

Maine Department of Transportation &
New Brunswick Department of
Transportation and Infrastructure

in coordination with the
Canada Border Services Agency,
Public Services and Procurement Canada,
U.S. General Services Administration,
and U.S. Customs and Border Protection

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TABLE OF CONTENTS

ACRONYMS.....	ii
I. INTRODUCTION.....	1
II. WORKING IN THE UNITED STATES.....	2
Port of Entry Operations.....	2
Immigration for Foreign Workers	2
Taxes.....	3
Worker Safety	3
III. WORKING IN CANADA.....	4
Port of Entry Operations.....	4
Importation of Goods	4
<i>Permanent Importation of Goods</i>	<i>5</i>
<i>Temporary Importation of Goods</i>	<i>13</i>
<i>Temporary Importation of Vessels such as Barges.....</i>	<i>14</i>
Export of Goods.....	16
Foreign Workers.....	22
<i>Immigration</i>	<i>22</i>
<i>Work Authorizations.....</i>	<i>23</i>
<i>Labour Market Impact Assessment (LMIA).....</i>	<i>24</i>
<i>Worker Safety.....</i>	<i>24</i>
IV. ADDITIONAL INFORMATION	26
V. VISITING THE PROJECT SITE.....	26
VI. REFERENCES	29
VII. RESOURCES	31

ACRONYMS

AMPS	Administrative Monetary Penalty System	KRT	Korea Tariff
AUT	Australia Tariff	LDCT	Least Developed Country Tariff
BIS	Business Information Service	LMIA	Labour Market Impact Assessment
BN	Business Number	LPOE	Land Port of Entry
BRO	Business Registration Online	MFN	Most-Favoured-Nation
CAED	Canadian Automated Export Declaration	MaineDOT	Maine Department of Transportation
CBP	U.S. Customs and Border Protection	NBDTI	New Brunswick Department of Transportation and Infrastructure
CBSA	Canada Border Services Agency	MT	Mexico Tariff
CCCT	Commonwealth Caribbean Countries Tariff	MUST	Mexico-United States Tariff
CGP	Controlled Goods Program	NAFTA	North American Free Trade Agreement
CIAT	Canada-Israel Agreement Tariff	NDR	No Declaration Required
CIC	Citizenship and Immigration Canada	NT	Norway Tariff
COLT	Columbia Tariff	NZT	New Zealand Tariff
CRA	Canada Revenue Agency	OGD	Other Government Departments and Agencies
CRT	Canada-Costa Rica Tariff	OHS	Occupational Health and Safety
CT	Chile Tariff	ORS	Office of the Revisor of Statutes
CTA	Canadian Transport Agency	OSH Act	Occupational Safety and Health Act of 1970
DPA	Defence Production Act	OSHA	U.S. Occupational Safety and Health Administration
EDI	Electronic Data Interchange	PAT	Panama Tariff
ESDC	Employment and Social Development Canada	POE	Port of Entry
GPT	General Preferential Tariff	PT	Peru Tariff
GSA	General Services Administration	PSPC	Public Services and Procurement Canada
GST	Goods and Services Tax	SIMA	Special Import Measures Act
HNT	Honduras Tariff	SLT	Switzerland-Liechtenstein Tariff
HRSDC	Human Resources and Skills Development Canada	TFW	Temporary Foreign Worker
HS	Harmonized System	TH	Trunk Highway
HST	Harmonized Sales Tax	USCIS	U.S. Citizenship and Immigration Services
IRCC	Immigration, Refugees and Citizenship Canada	UST	United States Tariff
IT	Iceland Tariff	WSIB	Workplace Safety and Insurance Board
JT	Jordan Tariff		

I. INTRODUCTION

The Maine Department of Transportation (MaineDOT) and the New Brunswick Department of Transportation and Infrastructure (NBDTI), in coordination with the Canada Border Services Agency (CBSA), Public Services and Procurement Canada (PSPC), U.S. General Services Administration (GSA), and U.S. Customs and Border Protection (CBP), are continuing the planning and design for the replacement of the Madawaska/ Edmundston International Bridge Crossing on Bridge Street between the Town of Madawaska and the City of Edmundston. With construction planned for 2020 (pending required approvals), MaineDOT and NBDTI will be soliciting a contractor to replace the International Bridge Crossing over the Saint John River.

The construction of the new international bridge over a waterway between Maine and New Brunswick is a complex undertaking and requires great consideration and compliance with many laws, regulations, and rules associated with the movement of goods and people across the international border.

This *Contractor Information Guide* provides a general overview of some of the requirements associated with the movement of goods and people across the international border and sources for additional information that may help inform contractors when preparing to bid on this project. This *Guide* should only be viewed as a starting point for gathering information on the requirements associated with the movement of goods and people across the international border. The purpose of this *Guide* is simply to inform and raise awareness of these requirements and the complexities involved with the construction of this international project.

Although this *Guide* mentions laws, regulations, and rules associated with the movement of goods and people across the international border and provides web sites and other sources of information, it is not intended to function as legal research, or an interpretation of these laws, regulations, and rules, nor is it intended to serve as legal advice.

MaineDOT and NBDTI strongly suggest contractors consult a qualified attorney when preparing to bid. Reliance on any information contained in this *Guide* must be done at the user's

own risk and cannot be used in support of a future claim against the MaineDOT and NBDTI. MaineDOT and NBDTI assume no responsibility for the accuracy and reliability of the information in this *Guide*. MaineDOT and NBDTI will not be liable for any losses caused by reliance on the information in this *Guide*.

Resources:

- [Madawaska/Edmundston International Bridge and Border Crossing Feasibility and Planning Study Website](#)

II. WORKING IN THE UNITED STATES

Port of Entry Operations

U.S. Customs and Border Protection (CBP) has a complex mission at Land Ports of Entry (LPOE) with broad law enforcement authority tied to screening all foreign visitors, returning American citizens, and imported cargo that enters the U.S. LPOE operations. CBP is authorized and expected to: conduct immigration inspections of people entering the country including visitors, Legal Permanent Residents, and U.S. citizens; as well as examine and secure all cargo and agricultural products entering the U.S. (CBP, 2016).

Resources:

- [Immigration Inspection Program](#)
- [Cargo Security Examinations](#)
- [Protecting Agriculture](#)
- [At Ports of Entry](#)

Immigration for Foreign Workers

To visit the United States for business purposes, individuals may need to obtain a visa as a temporary visitor for business (B-1 visa), unless qualifying for admission under another visa program or without a visa under the Visa Waiver Program (USCIS, 2015).

A contractor who desires Canadian citizens to work in the United States would have to apply for and receive approval from U.S. Citizenship and Immigration Services (USCIS, 2015).

Employers must verify that individuals whom they plan to employ in the United States are authorized to accept employment in the United States and generally must file a non-immigrant

petition on the individual's behalf with USCIS¹. An H-1B visa – workers in a specialty occupation – may be the appropriate nonimmigrant classification for a temporary worker (USCIS, 2015).

Resources:

- [B-1 Temporary Business Visitor](#)
- [Temporary \(Nonimmigrant\) Workers](#)

Taxes

Maine generally imposes an income tax on all individuals that have Maine-source income. As of 2017 the income tax rates are graduated, with rates ranging from 5.8% to 7.15% (MRS, 2017).

Maine imposes an income tax on all entities organized as corporations and that have Maine-source income. As of 2017 the corporate income tax is graduated, with rates ranging from 3.5% (for income up to \$25,000) to 8.93% (for income in excess of \$250,000). The tax generally does not apply to S corporations unless the corporation has federal taxable income at the corporate level (MRS, 2017).

Contractors or subcontractors may be required to pay sales or use tax on the cost of all materials, supplies and equipment purchased in the U.S. Goods, materials, and services procured in Maine may be subject to the state's sales and use tax (MRS, 2017). Goods and services procured in states other than Maine, would be subject to the sales tax rates of those states, and not additionally subjected to Maine sales tax.

Resources:

- [Maine Revenue Services](#)

Worker Safety

The U.S. Department of Labor, Occupational Safety and Health Administration (OSHA) assures safe and healthful working conditions for working men and women by setting and enforcing standards and by providing training, outreach, education, and

¹ Only a few nonimmigrant classifications allow you to obtain permission to work in the United States without an employer having first filed a petition on your behalf. Such classifications include the nonimmigrant E-1, E-2, E-3 and TN classifications, as well as, in certain instances, the F-1, M-1 student, and J-1 exchange visitor classifications (USCIS, 2016).

assistance (U.S. Department of Labor, 2016). The Occupational Safety and Health Act of 1970 (OSH Act) was passed to prevent workers from being killed or seriously harmed at work. Under the OSH Act, employers have the responsibility to provide a safe workplace (U.S Department of Labor, 2016).

Maine

Safety in Maine is governed by the Maine Department of Labor, Occupational Safety Rules and Regulations Board, with rules published in Maine Revised Statutes, Title 26, Chapter 6 (Maine Legislature, 2017).

Resources:

- [Occupational Safety and Health Administration OSHA](#)
- [OSHA At-A-Glance](#)
- [Occupational Safety Rules and Regulations Board Statutes](#)
- [Maine Department of Labor](#)

III. WORKING IN CANADA

Port of Entry Operations

Travelers arriving in Canada are obligated by Canadian law to present themselves to a border services officer, respond truthfully to all questions, and accurately report their goods. Travelers must follow the signs to Primary Inspection where a border services officer would examine identification and other travel documents, and take verbal declarations of goods being brought into Canada (CBSA, 2016).

Resources:

- [What to Expect at the \[Canadian\] Border](#)

Taxes

Income Tax Rates for Individuals

New Brunswick imposes an income tax on all federally-defined New Brunswick taxable income. The income tax rates are graduated, with rates ranging from 9.68% to 20.3% (CRA, 2017a).

Corporation Income Tax

New Brunswick imposes an income tax on all entities organized as corporations and that have New Brunswick-sourced income. Generally, provinces in Canada have two corporation income tax

rates – a lower rate and a higher rate. The lower rate applies to the income eligible for the federal small business deduction, while the higher rate applies to all other income. In New Brunswick, the lower rate is 3.5%, and the higher rate is 14%. The income eligible for the lower rate is determined using the New Brunswick business limit of \$500,000 (CRA, 2017a).

Importation of Goods

Goods, materials, and supplies imported during the construction of the International Bridge may enter under two scenarios: 1) permanent importation to be brought into the country and permanently installed in the Bridge, or 2) temporary importation, such as machinery and equipment.

Generally, a formal entry would be required by the Canada Border Services Agency (CBSA) to account for the importation of these goods and Customs duties and Federal taxes may be applicable.

Permanent Importation of Goods

Goods that would be permanently imported such as materials brought into and used in the construction of the bridge would require the presentation of accounting documentation to CBSA. The importer or their Customs Broker can complete the accounting documentation, which would declare the correct classification and tariff treatment applicable, both of which would determine the rate of duty to be applied.

The CBSA has a [step-by-step guide](#) with an overview of the commercial importing process for businesses importing goods into Canada. It is intended to complement and not replace existing regulations, acts, and references detailed in [Memoranda Series D1 to D22](#) dated June 2016 (CBSA, 2017a). The steps for businesses importing goods into Canada include:

Preparing to Import

1. Obtain a Business Number

Before importing commercial goods into Canada, contractors would need to obtain a Business Number (BN) issued by the Canada Revenue Agency (CRA) for an import/export account. This import/export account is free of charge and can usually be obtained in a few minutes. To register for a BN, contractors can

either call the CRA's Business Window at 1-800-959-5525 or visit the CRA's Business Registration Online (BRO) (CBSA, 2015).

Resources:

- [Business Registration Online \(BRO\)](#)

2. Identify goods to be imported

Contractors should gather information about the goods to be imported. Obtain descriptive literature, product composition information and, whenever possible, product samples. This information would be crucial when determining the tariff classification of the goods to be imported. The tariff clarification number would be used to determine the rate of duty that would be applied to the goods (CBSA, 2015).

3. Determine if a licensed customs broker would be used

The CBSA licenses customs brokers to carry out customs-related responsibilities to clear goods across the Canadian border. A broker's service typically includes:

- Obtaining the release of the imported goods;
- Paying duties;
- Obtaining, preparing, and presenting or transmitting documents or data;
- Maintaining records; and
- Responding to CBSA concerns after payment (CBSA, 2015).

Contractors can prepare their own release and accounting documentation and transact business directly with the CBSA, or contractors can authorize a Licensed Customs Broker to act as their agent to transact business. It is important to remember that contractors are ultimately responsible for the accounting documentation, payment of duties and taxes, and subsequent corrections such as re-determination of classification, origin, and valuation, even if they use the services of a broker (CBSA, 2015).

Consult the CBSA's licensed customs broker list should you wish to use the services of a broker.

Resources:

- [List of Licensed Customs Brokers](#)

- [Licensed Customs Brokers](#)

4. Determine the country of origin for the goods to be imported

Contractors must identify the country of origin for goods. It is important to remember that this does not simply mean the country from which the product was shipped. It may also include where individual parts of the product are from, as well as where it was assembled into the final product (CBSA, 2015).

Requirements for proof of origin can be found in Memorandum D11-4-2, *Proof of Origin* (CBSA, 2015).

Resources:

- [Memorandum D11-4-2, Proof of Origin](#)

5. Ensure the goods to be imported are permitted into Canada

Certain goods are not allowed to be imported into Canada. For more information on prohibited products, contractors should consult Memoranda Series D9, *Prohibited Importations* (CBSA, 2015).

Resources:

- [Memoranda Series D9, Prohibited Importations](#)

6. Determine whether the goods to be imported are subject to any permits, restrictions, or regulations by the CBSA or other government departments

Many goods are subject to the requirements of other government departments and agencies (OGDs) and may require permits, certificates, and/or inspection. The CBSA is responsible for administering the legislated import requirements on behalf of other government departments. More than one government department may have a role to play in the requirements and regulations pertaining to the importation of certain goods. (CBSA, 2015).

Contractors would need to determine if goods to be imported are subject to regulations, restrictions, permits, or other requirements. The CBSA's Other Government Departments and Agencies: Reference List for Importers provides a list of some of the most commonly imported commodities that may require permits and/or certificates. More comprehensive information can be

found in Memoranda Series D19, *Acts and Regulations of Other Government Departments* (CBSA, 2015).

The CBSA requires certain goods to be clearly marked with the country of origin. More information on marking requirements is found in Memorandum D11-3-1, *Marking of Imported Goods* (CBSA, 2015).

Some goods are subject to measures under the *Special Import Measures Act* (SIMA). The special measures available under the SIMA include anti-dumping duties, countervailing duties, and undertakings. Consult the monthly index of products subject to SIMA and refer to Memoranda Series D14, *Special Imports Measures Act* (CBSA, 2015).

Before certain goods are imported into Canada, contractors must determine whether they are subject to domestic controls. Under the *Defence Production Act* (DPA) and the *Controlled Goods Regulations*, any person who examines, possesses or transfers controlled goods domestically is legally required to register with Public Services and Procurement Canada's (PSPC) Controlled Goods Program (CGP). A list of controlled items in Canada is available in the Schedule to the DPA and to further establish if the goods contractors may be importing are controlled in Canada, refer to PSPC's *Guide to the New Schedule to the Defence Production Act* (CBSA, 2015).

Resources:

- [Other Government Departments and Agencies: Reference List for Importers](#)
- [Memoranda Series D19, Acts and Regulations of Other Government Departments](#)
- [Memorandum D11-3-1, Marking of Imported Goods](#)
- [Special Import Measures Act \(SIMA\)](#)
- [SIMA - Measures in Force](#)
- [Memoranda Series D14, Special Imports Measures Act](#)
- [Schedule to the Defence Production Act](#)
- [Guide to the New Schedule to the Defence Production Act](#)

Classifying your goods

7. Determine the 10-digit tariff classification number for each item to be imported

Once contractors are sure that goods may be imported, contractors would need to determine the correct tariff classification number.

These numbers, along with the country of origin, are used to determine the rate of duty contractors must pay when importing (CBSA, 2015).

Most trading countries, including Canada, the United States, China, and India, use the Harmonized System (HS) as the basis of their classifications systems. The first six digits are a common identifier across countries using the HS for a particular good. The following four digits are unique to Canada and are used to establish the duty rates and for statistical purposes (CBSA, 2015). Tariff classification numbers can be determined by:

- Consulting the *Customs Tariff*;
- Contacting the Border Information Service (BIS);
- Requesting an advance ruling on a tariff classification by mail from a CBSA trade office.

Resources:

- [Harmonized Commodity Description and Coding System \(HS\)](#)
- [Customs Tariff](#)
- [Border Information Service \(BIS\)](#)
- [CBSA Trade Operations Divisions](#)
- [Memorandum D10-13-1, Classification of Goods](#)

Determining duties and taxes

8. Determine the applicable tariff treatment and rate of duty.

Once contractors have determined the correct tariff classification number, contractors would need to establish the tariff treatment that applies to goods before the rate of duty can be determined. When viewing the *Customs Tariff* Schedule, contractors should note two columns on the right hand side entitled "Most-Favoured-Nation (MFN) Tariff" and "Applicable Preferential Tariffs."

Most-Favoured-Nation (MFN) Tariff: Goods originating from all countries, except North Korea, are entitled to use the rate of duty specified under this column.

Applicable Preferential Tariffs: This column lists reduced rates of duty for goods based on trade agreements including:

- North American Free Trade Agreement (NAFTA): United States Tariff (UST), Mexico Tariff (MT), Mexico-United States Tariff (MUST);

- Chile Tariff (CT);
- Canada-Israel Agreement Tariff (CIAT);
- Canada-Costa Rica Tariff (CRT);
- Canada-European Free Trade Association Free Trade Agreement: Iceland Tariff (IT), Norway Tariff (NT), Switzerland-Liechtenstein Tariff (SLT);
- Canada-Peru Free Trade Agreement: Peru Tariff (PT);
- Canada-Colombia Free Trade Agreement: Colombia Tariff (COLT);
- Canada-Jordan Free Trade Agreement: Jordan Tariff (JT);
- Canada-Panama Free Trade Agreement: Panama Tariff (PAT);
- Canada-Honduras Free Trade Agreement: Honduras Tariff (HNT); and
- Canada-Korea Free Trade Agreement: Korea Tariff (KRT).

Or rates of duty based on special tariff provisions such as the:

- General Preferential Tariff (GPT);
- Least Developed Country Tariff (LDCT);
- Commonwealth Caribbean Countries Tariff (CCCT);
- Australia Tariff (AUT); and
- New Zealand Tariff (NZT).

The requirements of the particular trade agreement or tariff treatment must be satisfied to benefit from a preferential duty rate. Contractors must possess proof of origin for the specific trade agreement at the time of importation. A complete list of countries eligible for the above tariff treatments can be found at the beginning of the *Customs Tariff*. General tariff information and guidelines can be found in Memorandum D11, *General Tariff Information* (CBSA, 2015).

Resources:

- [Customs Tariff](#)
- [Rules of Origin Regarding the Most-Favoured-Nation \(MFN\) Tariff](#)
- [Memorandum D11, General Tariff Information](#)
- [Memorandum D11-4-2, Proof of Origin of Imported Goods](#)

9. Determine if goods are subject to the goods and services tax (GST), excise tax or excise duty

The GST is payable on most goods at the time of importation under Part IX, Division III of the *Excise Tax Act*. Tax exemption codes to use on the Canada Customs Coding Form B3, are listed in Memorandum D17-1-10, *Coding of Customs Accounting Documents*, Appendix H, List 4 (GST Status Codes) and List 7 (Excise Tax Exemption Codes). If goods are tax exempt, contractors must quote the tax exemption code on import documentation (CBSA, 2015).

Resources:

- [Excise Tax Act, Part IX, Division III](#)
- [Canada Customs Coding Form B3](#)
- [Memorandum D17-1-10, Coding of Customs Accounting Documents](#)
- [Canada Revenue Agency \(CRA\)](#)

10. Determine the value of the goods you are importing

Once the tariff classification number and the tariff treatment of imported goods is determined, the value for duty can be determined. In most cases, the value for duty is the amount paid for the goods. The declaration of value for duty should be supported by receipts or sales invoices. Documents must include a complete description of the goods, the selling price and conditions, and terms of the sale. The value for duty must be in Canadian funds (CBSA, 2015).

The *Customs Act* identifies six legislated methods of valuation. The method applicable to imported goods is the first method, considered in sequential order, for which all requirements of the method can be satisfied. For example, most goods are imported to Canada as a result of a sale for export to a purchaser in Canada. The value for duty would be based on the price paid or payable for the goods in that sale, if all the requirements of the transaction value method are met (CBSA, 2015).

Resources:

- [Memorandum D1-4-1, CBSA Invoice Requirements](#)
- [Customs Act](#)
- [Memoranda Series D13, Valuation](#)

11. Estimate in advance how much duty and taxes would be required

To convert the value into Canadian dollars using the exchange rate from the date of direct shipment (the date the goods began their direct and continuous journey to a specific destination in Canada). To obtain the proper exchange rate, call the BIS (CBSA, 2015).

Resources:

- [Memorandum D13-1-2, Direct Shipment of Goods](#)
- [Border Information Service \(BIS\)](#)

Shipping, examining, and reporting your goods

12. Select a method of shipping

Place orders with the vendor, shipper, or exporter and identify the mode of shipping that would be used (highway, marine, rail, air); then determine the CBSA office where goods would be released. Most shipments are released at the CBSA office where they arrive in Canada; however, if contractors use a CBSA bonded carrier, they may choose another inland service point (CBSA, 2015).

Resources:

- [Directory of CBSA Offices and Services](#)
- [Commercial Carrier and Freight Forwarder Identification and Eligibility - Highway Carriers](#)

13. Report goods

Commercial goods must be reported to the CBSA. Shipments may be monitored for compliance with CBSA requirements or other government department regulations. This is done without charge; however, if there is a need to hire a transport company to move or handle your goods, you may receive an invoice from that company for their services (CBSA, 2015).

Getting goods released

14. Obtain release of goods

There are two options for releasing goods: full accounting and payment of duties and release of goods prior to payment of duties. With both options, contractors may prepare the release and accounting documents or use a licensed customs broker. Regardless of method used, the CBSA would assign each shipment a 14-digit transaction number to identify your goods throughout the clearance process (CBSA, 2015).

Resources:

- [Licensed Customs Brokers](#)
- [Memorandum D17-1-5, *Registration, Accounting and Payment for Commercial Goods*](#)

After goods are released

15. Adjusting errors in the accounting information submitted

If contractors make an error in the accounting information, and the CBSA has not already made the corrections, contractors are required to correct the information within 90 days after discovery of the error. If a change in the accounting information results in a refund of duties or taxes paid, an application for a refund can be filed (in most cases up to four years from the date the goods were accounted) (CBSA, 2015).

Resources:

- [Memorandum D17-2-1, *Coding of Adjustment Request Forms*](#)
- [Updated D17-2-1 – B2 Adjustment Request](#)
- [Memorandum D11-6-6, *“Reason to Believe” and Self-Adjustments to Declarations of Origin, Tariff Classification, and Value for Duty*](#)
- [Memorandum D6-2-3, *Refund of Duties*](#)

16. Keep records of imports

Contractors must keep records of importations; this includes information relating to the quantities received, price paid, the country of origin, vendor, product, and all other related information (CBSA, 2015).

Resources:

- [Memorandum D17-1-21, *Maintenance of Records in Canada by Importers*](#)

Temporary Importation of Goods

There is provision in the Customs Tariff for goods imported temporarily, providing duty relief when the imported goods are not for sale, lease or for further processing. Therefore equipment (such as cranes, backhoes, bull dozers, etc.) may enter under the provisions of the Temporary Importation Regulations and receive full duty relief (CBSA, 2017d).

Generally, there is no provision for relief of GST and therefore the customs accounting documentation would account for GST on the

full value of the machinery being imported. The contractor may be required to self-assess the provincial component of the Harmonized Sales Tax (HST).

Resources:

- [Temporary Importation of Conveyances](#)

Temporary Importation of Vessels such as Barges

The CBSA, in association with the Canadian Transportation Agency (CTA) and Transport Canada, is responsible for administering a temporary admission program for commercial vessels. The program provides for the temporary, short-term market needs that cannot be met from existing fleet capacity in Canada. Under the program, foreign and non-duty paid vessel operators may apply (through a representative Canadian resident) to operate these vessels temporarily in Canada under a *Coasting Trade license* (Form C48), and on a duty-reduced basis when no suitable Canadian vessel is available to carry out a specific movement or provide a particular service.

The CTA is responsible for determining whether a suitable Canadian vessel is available to perform the coasting trade activity specified in the application. Once the CTA determines that no suitable Canadian vessel is available, the CBSA issues a letter of authority allowing the applicant to complete the process for a *Coasting Trade License* and start operations.

Reduction or Removal of Duties

Duties reduction and removal provisions for vessels are found in the *Vessel Duties Reduction or Removal Regulations*. These Regulations are set under an authority in a supplementary note to Chapter 89 of the *Customs Tariff* (CBSA 2016d).

Duty and tax relief may be available if vessels are temporarily imported for repair or other work. Tariff item No. 9993.00.00 of the Schedule to the *Customs Tariff* and Memorandum D8-1-1, *Amendments to Temporary Importation (Tariff Item No. 9993.00.00) Regulations*, provide information regarding duty relief for vessels temporarily admitted to Canada for repair or alteration (CBSA 2016d).

If vessels are temporarily imported into Canada for further processing, customs duty relief may be available through the

CBSA Duty Deferral program. Further information is available in Memoranda D7-4-1, *Duties Relief Program*, D7-4-2, *Duty Drawback Program*, and D7-4-3, *NAFTA Requirements for the Duty Drawback and the Duties Relief Programs* (CBSA 2016d).

Tariff item No. 9803.00.00 provides duty and tax relief for non-residents' conveyances and baggage, including non-commercial non-resident vessels imported for leisure use. For additional information see D2-1-1, *Temporary Importation of Baggage and Conveyances by Non-residents* (CBSA 2016d).

For vessels temporarily admitted to the coasting trade, the *Vessel Duties Reduction or Removal Regulations* provide for the reduction or removal of duties that apply under the *Customs Tariff* when certain terms and conditions are met (CBSA 2016d).

The duties reduction for vessels authorized to operate temporarily in the coasting trade are under what is referred to as the “1/120 provision.” The exceptions to the above are vessels authorized to operate in the coasting trade of Canada in an “intercoastal movement” on condition that no suitable Canadian vessel is available. In such cases, duties on the vessel would be reduced to zero for that movement (CBSA 2016d).

In addition, the *Vessel Duties Reduction or Removal Regulations*, under specified conditions, reduce or remove duties that apply to certain vessels returning to Canada after being repaired or modified. These regulations also provide tax relief for vessels temporarily imported for storage (tariff item No 9993.00.00 provides customs duty relief for such vessels) (CBSA 2016d).

Resources:

- [*Vessel Duties Reduction or Removal Regulations*](#)
- [*Customs Tariff*](#)
- [*Memorandum D8-1-1, Amendments to Temporary Importation \(Tariff Item No. 9993.00.00\) Regulations*](#)
- [*D7-4-1, Duties Relief Program*](#)
- [*D7-4-2, Duty Drawback Program*](#)
- [*D7-4-3, NAFTA Requirements for the Duty Drawback and the Duties Relief Programs*](#)
- [*D2-1-1, Temporary Importation of Baggage and Conveyances by Non-residents*](#)

Export of Goods

Goods, materials, and supplies exported from Canada during the construction of the International Bridge falls under the jurisdiction of the CBSA. The CBSA has a [step-by-step guide](#) with an overview of the commercial exporting process for businesses exporting goods from Canada. It is intended to complement and not replace existing regulations, acts, and references detailed in [Memoranda Series D1 to D22](#) dated June 2016 (CBSA, 2017c). The steps for businesses importing goods into Canada include:

Preparing to Export

1. Obtain a Business Number

Before exporting commercial goods from Canada, contractors would need to obtain a BN issued by the CRA for an import/export account. This import/export account is free of charge and can usually be obtained in a matter of minutes. To register for a BN, contractors can either call the CRA's Business Window at 1-800-959-5525 or visit the CRA's BRO (CBSA, 2017c).

Resources:

- [Business Registration Online \(BRO\)](#)

2. Identify goods to be exported

Contractors should have an accurate description of the goods to export before proceeding. An accurate description would help determine if the goods are regulated, controlled or prohibited by other government departments or if a permit or license is required. The CBSA assists OGDs by applying their legislation relating to the exportation of various commodities (CBSA, 2017c).

Resources:

- [Other Government Departments and Agencies: Reference List for Exporters](#)

3. Determine if a licensed customs broker would be used

The CBSA licenses customs brokers to carry out customs-related responsibilities. A broker's service in relation to exporting typically includes:

- Obtaining, preparing and presenting or transmitting the necessary documents or data;
- Maintaining records; and

- Responding to any CBSA concerns (CBSA, 2017c).

Contractors prepare their own export documentation and transact business directly with the CBSA, or contractors can authorize a Licensed Customs Broker to act as their agent to transact business. It is important to remember that as the exporter, you are ultimately responsible for completing and presenting the exporting documentation, and any subsequent corrections to the documentation, even if you use the services of a broker (CBSA, 2017c).

Consult the CBSA's licensed customs broker list should you wish to use the services of a broker (CBSA, 2017c).

Resources:

- [Licensed Customs Brokers](#)
- [List of Licensed Customs Brokers](#)

4. Determine the country of origin for the goods to be exported

The origin of goods to be exported can affect permit requirements. A permit is not required to export United States origin goods back into the United States.

Resources:

- [Memoranda Series D11, General Tariff Information](#)

5. Ensure the goods are permitted to be exported from Canada

Certain goods cannot be exported from Canada.

Resources:

- [Export Controls](#)

6. Determine whether the goods to be exported are subject to any permits, restrictions or regulations by the CBSA or other government departments

Some goods may be subject to the requirements of OGDs and may require permits, certificates, and inspection. The CBSA is responsible for administering export requirements on behalf of OGDs. It should be noted that more than one government department may have a role to play in the requirements and

regulations pertaining to the export of certain goods; it is therefore beneficial to contact any that may play a role (CBSA, 2017c).

Contractors should verify whether the goods to be exported are controlled, regulated or prohibited by any government department or agency. Contractors should obtain an export permit if required (CBSA, 2017c).

Resources:

- [Other Government Department and Agencies: Reference List for Exporters](#)
- [Memoranda Series D19, Acts and Regulations of Other Government Departments](#)

7. Ensure goods to be exported are allowed entry into the U.S.

Contractors should verify that their products meet the import requirements of the U.S. (CBSA, 2017c).

Determining if an Export Declaration is Required

8. Determine whether or not goods need to be declared on an export declaration

Certain goods are not required to be reported on an export declaration. The exempted goods are listed in Memoranda Series D20 and are further explained in Memorandum D20-1-1, *Export Reporting* (CBSA, 2017c).

If the export matches one of the exemptions on the list, contractors should advise their carrier and indicate “No Declaration Required” (NDR) with the proper explanation or corresponding numerical code on the transport documentation (cargo control document, manifest, bill of lading, etc.) (CBSA, 2017c).

Resources:

- [Memorandum D20-1-1, Export Reporting](#)
- [Export Reporting - No Declaration Required](#)

Classifying Exports

9. If an export declaration is required, determine the appropriate export code

Once contractors have determined that the goods may be exported, and that submitting an export declaration is required, contractors must classify the goods. Depending on the method of reporting, either the Statistics Canada eight-digit Canadian Export

Classification number or the ten-digit Canadian Tariff Classification number is used. If contractors are using the Canadian Automated Export Declaration (CAED) to submit their declaration, they must use the eight-digit Canadian Export Classification number (CBSA, 2017c).

The Canadian Export Classification number is based on an international six-digit 'root' with an additional two digits for Canadian domestic purposes for a total of eight digits. To obtain the eight-digit Canadian Export Classification number, contractors can call Statistics Canada at 1-800-257-2434 or consult the Statistics Canada, Canadian Export Classification online (CBSA, 2017c).

To obtain the ten-digit Tariff Classification Number, contractors can consult the Customs Tariff or contact the BIS (CBSA, 2017c).

Resources:

- [Canadian Export Classification](#)
- [Customs Tariff](#)
- [Border Information Service \(BIS\)](#)
- [Memorandum D10-13-1, Classification of Goods](#)

Shipping and Reporting Goods

10. Determine shipping method and identify the reporting time frame

If contractors are required to report their export to the CBSA, they are required to do so prior to export, and according to specific timeframes depending on the mode of transportation used. When more than one mode of transportation is used to export goods, the timeframes for reporting for each of these modes apply concurrently (CBSA, 2017c).

Goods are to be reported at a designated export office inland or at the border. Export permits, licenses, or certificates must be presented before the goods are exported and the location would be specified on the permit. If the permit, license, or certificate does not name a place of exit, the permit, license, or certificate and the export declaration (if required) must be presented to the export reporting office closest to the place of exit (CBSA, 2017c).

Shipments may be examined by government officials to monitor compliance with CBSA requirements or other government department regulations (CBSA, 2017c).

Resources:

- [Memorandum D20-1-1, Export Reporting](#)
- [Directory of CBSA Offices and Services](#)
- [Offload Policy for Highway Examinations](#)

11. Submit export declaration if required

If contractors are required to report exports, contractors must submit an export declaration by:

- **Canadian Automated Export Declaration (CAED):** An electronic method of reporting exports allowing quick preparation of export declarations.
- **G7 Electronic Export Declaration Process:** This process allows exporters or their agents to file their export declaration using Electronic Data Interchange (EDI).
- **Summary Reporting:** This method is reserved for approved exporters of low-risk goods who export on a regular basis and have met specific CBSA requirements. It enables contractors or agents to summarize required export data, which can be submitted on a monthly basis, in writing, after the goods have left Canada.
- **B13A, Export Declaration:** When electronic permit reporting options are not available; the requirement to present a paper copy of the electronic export declaration and OGD permit at the CBSA office closest to the point of exit remains unchanged using the B13A, Export Declaration (CBSA, 2017c).

Resources:

- [Canadian Automated Export Declaration \(CAED\)](#)
- [G7 Electronic Data Interchange Export Reporting](#)
- [Summary Reporting \(#34 and #35\)](#)
- [B13A, Export Declaration](#)

12. Present proof of export if required.

In some cases, the CBSA requires exporters to produce proof of export that the goods have been exported or have been destroyed. This would apply to goods that were initially imported into Canada under a temporary importation agreement such as a Temporary Admission Permit (form E29B) or the ATA Carnet program (CBSA, 2017c).

Resources:

- [Memorandum D20-1-4, Proof of Export, Canadian Ownership, and Destruction of Commercial Goods](#)
- [Temporary Admission Permit \(form E29B\)](#)
- [ATA Carnet](#)

After Goods are Exported

13. Provide a Certificate of Origin to the receiver of the goods if requested

The certificate of origin is a signed declaration from the manufacturer that the goods are of Canadian origin and meet the requirements of a free trade agreement. The exporter forwards a copy of the certificate of origin to the importer and retains a copy for his records (CBSA, 2017c).

Resources:

- [Memorandum D11-4-14, Certificate of Origin Under Free Trade Agreements](#)

14. Procedures to follow to cancel or amend an export declaration

Contractors may have to cancel a shipment or modify information about a shipment already reported. If so, contractors must submit an amended declaration to an export reporting office clearly identifying the changes. There are different procedures depending on the original reporting method:

- **CAED or G7 EDI Export Reporting** – use the “amend” feature in the program to submit an amended declaration;
- **Summary Reporting** – notify Statistics Canada; and
- **Form B13A** – submit an amended Export Declaration to the export reporting office where you presented your original export document (CBSA, 2017c).

Resources:

- [Canadian Automated Export Declaration \(CAED\)](#)
- [G7 Electronic Data Interchange Export Reporting](#)
- [Summary Reporting \(#34 and #35\)](#)
- [Statistics Canada](#)
- [B13A, Export Declaration](#)

15. Keep all records pertaining the export

Contractors must keep records of exportations.

Resources:

- [Memorandum D20-1-5, Maintenance of Records and Books in Canada by Exporters and Producers.](#)

16. Be aware that the CBSA uses an Administrative Monetary Penalty System (AMPS)

The CBSA uses the Administrative Monetary Penalty System (AMPS) to assess monetary penalties against businesses that do not comply with customs legislation (CBSA, 2017c).

Resources:

- [Administrative Monetary Penalty System \(AMPS\)](#)

Foreign Workers

Immigration

Individuals working in Canada must be Canadian citizens, permanent residents, or hold a current work authorization issued by Citizenship and Immigration Canada (CIC) or CBSA.

Human Resources and Skills Development Canada (HRSDC) is the department of the Canadian government responsible for developing, managing, and delivering social programs and services (CCSD, 2017). If there are insufficient numbers of qualified workers, the contractor may seek foreign worker Employment Validation from HRSDC. The contract may need to satisfy HRSDC that a reasonable attempt has been made to secure Canadian labor.

Under the Temporary Foreign Worker Program, employers can apply for a Labour Market Impact Assessment (LMIA) before a temporary foreign worker (TFW) has been identified. LMIA applications that do not contain the names of the TFWs would be assessed by Employment and Social Development Canada (ESDC)/Service Canada and employers who meet the requirements would receive a positive "Unnamed LMIA," valid for 6 months (ESDC, 2017).

The process for an unnamed LMIA application consists of:

- I. The employer submits a LMIA application without completing the "Foreign Worker Information" section or by indicating "Unnamed" in that section.

- II. The application must be accompanied by all supporting documentation as the assessment is the same as a standard LMIA application.
- III. The employer must continue to make efforts to recruit Canadians and permanent residents until the names of the TFWs have been provided.
- IV. ESDC/Service Canada verifies that the LMIA application meets the criteria for an unnamed LMIA, and assesses the application according to the Program requirements.
- V. If the result of the assessment is positive, a positive LMIA letter labelled "Unnamed LMIA" would be sent to the employer for a given number of positions, and a specific period of employment. The letter would include a "Foreign Worker Name Template".
- VI. As soon as the TFWs have been identified, the employer must complete and submit the "Foreign Worker Name Template" to ESDC/Service Canada.
- VII. ESDC/Service Canada would add the names of the TFWs into the system and issue an official positive LMIA letter to the employer within 5 to 10 business days. The official positive LMIA letter would include the same expiry date as the unnamed positive LMIA letter (ESDC, 2017).

TFWs must apply for a work permit from Immigration, Refugees and Citizenship Canada (IRCC) before the expiry date of the positive LMIA. Their applications for a work permit must include a copy of the official positive LMIA letter, the annexes, and the employment contract (ESDC, 2017).

Resources:

- [Human Resources and Skills Development Canada \(HRSDC\)](#)
- [What is a Labour Market Impact Assessment \(LMIA\)](#)

Work Authorizations

Individuals working in Canada must be Canadian citizens, permanent residents or hold a current work authorization issued by CIC or CBSA. Work authorizations are issued for a fixed period of time (temporary) and are specific to the work being done, the individual doing the work and the work location. There is a fee for issuing a work authorization (CIC, 2017).

In the majority of cases, CIC and CBSA would insist on having ESDC LMIA to support requests for work authorizations (CIC, 2017).

Resources:

- [Work in Canada Temporarily](#)

Labour Market Impact Assessment (LMIA)

At the request of an employer, ESDC would issue a LMIA to support a request for work authorization. ESDC can also issue a LMIA at the direct request of CIC/CBSA Officers (ESDC, 2017).

To request a LMIA, an employer must complete the Request for a LMIA application form and submit it to the Service Canada location where the work is being done (ESDC, 2017).

In response to the request, ESDC can issue either a positive or negative opinion depending on the potential impact on the Canadian Labor market (ESDC, 2017).

Resources:

- [What is a Labour Market Impact Assessment \(LMIA\)](#)

Worker Safety

Contractors are responsible for preventing workplace accidents and injuries, and promoting safe and healthy workplaces. These responsibilities and obligations fall under Part II of the *Canada Labour Code* and apply to workplaces under federal jurisdiction only (Labour Program, 2016).

Contractors would need to ensure that employees have the necessary information, training and supervision to perform their jobs safely. Managers, supervisors, health and safety committees, and representatives must understand their roles and responsibilities under the Canada Labour Code. Additional areas of obligations and responsibilities under the Canada Labour Code are investigations, inspections, accident reporting, and the Hazard Prevention Program (Labour Program, 2016).

Contractors are responsible for:

- An appropriate understanding of overall work safety procedures;

- Knowledge of the safe use of workplace tools and equipment;
- Awareness of known or foreseeable workplace hazards; and
- (Whenever possible) training sessions should include documentation (Labour Program, 2016).

Contractors would need to ensure that health and safety committees/representatives understand their duties with respect to:

- Maintaining regular meetings (this applies to committees only);
- Conducting monthly inspections; and
- Participating in accident investigations and job hazard analyses (Labour Program 2016).

Contractors would need to ensure that managers and supervisors understand their duties related to the internal complaint resolution process, refusals to work, and accident investigations and reporting (Labour Program, 2016).

New Brunswick

WorkSafeNB (Travail Sécuritaire NB) enforces the New Brunswick *Occupational Health and Safety Act* (OHS). The OHS Act sets out the rights and duties of all parties in the workplace. It establishes procedures for dealing with workplace hazards and it provides for enforcement of the law where compliance has not been achieved voluntarily by workplace parties. Employers should note that the OHS Act makes it clear that the employers have the greatest responsibilities with respect to health and safety in the workplace (WorkSafeNB, 2017).

Contractors will need Workplace Safety and Insurance Board (WSIB) coverage. The WSIB is a government agency that provides no-fault compensation for New Brunswick workplaces covered under the *Workplace Safety and Insurance Act, 1997* (WSIB, no date).

Resources:

- [Federally Regulated Businesses and Industries](#)
- [Health and Safety Committees and Representatives](#)
- [Hazard Prevention Program](#)
- [Workplace Safety](#)
- [WorkSafeNB](#)
- [New Brunswick Occupational Health and Safety Act](#)
- [Guide to OHS Legislation](#)

- [Bill 119 Mandatory Coverage for the Construction Industry](#)

IV. ADDITIONAL INFORMATION

For additional information, please contact:

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V. VISITING THE PROJECT SITE

It is suggested that persons traveling to the Madawaska LPOE or Edmundston POE for purposes of viewing the International Bridge and adjoining areas carry their passport at all times even if they don't anticipate leaving their home country and observe the following protocols.

Madawaska LPOE

- When planning to visit the International Bridge and the LPOE, contact Mr. Cyr at least a few days in advance and provide the names of the individuals and their birthdates.
- When arriving at the LPOE, proceed directly to the front desk and ask to speak to Mr. Cyr (he may or may not be on duty and available).
- For Canadian citizens visiting the U.S. for meetings, a U.S. Visa is not required.
- A photo permit is not required to take photos. When taking photos, under no circumstances should any officers or their vehicles appear in any photographs.
- When taking photos or videotaping, respect other's privacy and do not include their license plate numbers in the photo or videotape.

Mr. Scott Cyr
U.S. Customs and Border Protection
LPOE Director
(207) 728-4565 or mobile (207) 538-6797
Scott.P.Cyr@Cbp.Dhs.Gov

Edmundston POE

- When planning to visit the International Bridge and the POE, contact Mr. Poitras at least a few days in advance with: names of individuals, purpose of visit, dates of visit.
 - o If a group of people would be visiting the International Bridge and the POE, provide a “master list” of persons to the CBSA. The master list should include: full name, citizenship and birthday.
- When arriving at the POE, proceed directly to the front desk. Inform the officer on duty of your arrival.
- All persons visiting the International Bridge and the POE must check in/check out with the office at the front desk every day.
- A photo permit is not required to take photos. When taking photos, please respect the officers, their vehicles, and their privacy.
- When taking photos or videotaping, respect other’s privacy and do not include their license plate numbers in the photo or videotape.
- For U.S. citizens visiting the International Bridge and the POE, a work permit is not required. If arriving in Canada via an airport, others may not have the same understanding and a work permit from IRCC may be required.

Sylvain Poitras
Chief of Operations
Canada Border Services Agency
Chief of the Edmundston POE
(506) 739-0360
Sylvain.Poitras@cbsa-asfc.gc.ca

Port of Entry Phone: (506) 739-1820

General Inquiries visit Border Information Services
(BIS) at: <https://www.cbsa-asfc.gc.ca/contact/bis-sif-eng.html>
Phone:
Calls within Canada Toll Free: 1-800-461-9999

Calls outside Canada: 1-204-983-35001-506-636-5064

Media Inquiries: communicationsatl@cbsa-asfc.gc.ca

Please understand these are only guidelines for purposes of viewing the International Bridge and adjoining areas and subject to others' interpretation and change.

VI. REFERENCES

- Canada Border Services Agency (CBSA). (2017a). *Valid D Memoranda List*. Retrieved on December 20, 2017, from: <http://www.cbsa-asfc.gc.ca/publications/dm-md/d0/d0-17.pdf>.
- (2017b). *Justice Laws Website*. Retrieved on December 20, 2017, from: <http://laws-lois.justice.gc.ca/eng/regulations/sor-90-304/index.html>
- (2017c). *Step-by-Step Guide to Exporting Commercial Goods from Canada*. Retrieved on December 20, 2017, from: <http://www.cbsa-asfc.gc.ca/export/guide-eng.html>
- (2017d). *Travellers*. Retrieved on December 20, 2017 from: <http://www.cbsa-asfc.gc.ca/travel-voyage/web-qaf-eng.html>.
- (2015). *Step-by-Step Guide to Importing Commercial Goods into Canada*. Retrieved on December 20, 2017, from: <http://www.cbsa-asfc.gc.ca/import/guide-eng.html>
- Canada Revenue Agency (CRA). (2017a). "Canadian income tax rates for individuals - current and previous years." Canada.ca. January 03, 2018. Accessed January 08, 2018. <https://www.canada.ca/en/services/taxes.html>
- (2017b). "Temporary Importation of Conveyances". Retrieved on December 20, 2017, from: <http://www.cra-arc.gc.ca/E/pub/gi/p-024r/p-024r-e.html>
- Canadian Council on Social Development (CCSD). (2017). *Human Resources and Skills Development Canada*. Retrieved on December 20, 2017, from: <http://www.ccsd.ca/index.php/friends-partners/item/human-resources-and-skills-development-canada>
- Citizenship and Immigration Canada (CIC). (2016). *Apply for a Work Permit*. Retrieved December 20, 2017, from: <http://www.cic.gc.ca/english/work/apply-how.asp>
- Employment and Social Development Canada (ESDC). (2017). *Find out if you need a Labour Market Impact Assessment*. Retrieved on December 20, 2017, from: https://www.canada.ca/en/immigration-refugees-citizenship/services/work-canada/hire-foreign-worker/temporary/find-need-labour-market-impact-assessment.html?_ga=2.174626082.1651438858.1513792206-1740757298.1513792206
- Labour Program. (2016). *Workplace Safety*. Government of Canada. Retrieved on December 20, 2017, from: http://www.travail.gc.ca/eng/health_safety/workplace/index.shtml
- Maine Revenue Services (MRS). (2017). *Welcome to Maine Revenue Services*. Retrieved on December 20, 2017, from: <http://www.maine.gov/revenue/>

- Maine Legislature. (2017). *Maine Revised Statutes*. Retrieved on December 20, 2017 from: <http://legislature.maine.gov/legis/statutes/26/title26ch4sec0.html>
- U.S. Citizenship and Immigration Services (USCIS). (2015). *B-1 Temporary Business Visitor*. Retrieved on December 20, 2017, from: <https://www.uscis.gov/working-united-states/temporary-visitors-business/b-1-temporary-business-visitor>
- (2011). *Temporary (Nonimmigrant) Workers*. Retrieved on December 20, 2017, from: <https://www.uscis.gov/working-united-states/temporary-nonimmigrant-workers>
- U.S. Customs and Border Protection (CBP). (2016). *At Ports of Entry*. Retrieved on December 20, 2017, from: <https://www.cbp.gov/border-security/ports-entry>
- U.S. Department of Labor. (2016). *Occupational Safety and Health Administration*. Retrieved on December 20, 2017, from: <https://www.osha.gov/about.html>
- Workplace Safety Insurance Board (WSIB). (2016). Bill 119 Mandatory Coverage for the Construction Industry. Retrieved on August 18, 2016, from: <http://needwsibcoverage.ca/>
- WorkSafeNB. (2017). *WorkSafeNB*. Retrieved on December 20, 2017, from: <http://www.worksafenb.ca/splash>

RESOURCES

- 1) Administrative Monetary Penalty System (AMPS) – CBSA,
<http://www.cbsa-asfc.gc.ca/trade-commerce/amps/menu-eng.html>
- 2) Find out if you need a Labour Market Impact Assessment (LMIA) – ESDC
https://www.canada.ca/en/immigration-refugees-citizenship/services/work-canada/hire-foreign-worker/temporary/find-need-labour-market-impact-assessment.html?_ga=2.174626082.1651438858.1513792206-1740757298.1513792206
- 3) At Ports of Entry – CBP
<https://www.cbp.gov/border-security/ports-entry>
- 4) ATA Carnet – Government of Canada
<http://www.cbsa-asfc.gc.ca/trade-commerce/tip-pec-eng.html>
- 5) B-1 Temporary Business Visitor – USCIS
<https://www.uscis.gov/working-united-states/temporary-visitors-business/b-1-temporary-business-visitor>
- 6) B13A, Export Declaration – CBSA
<http://www.cbsa-asfc.gc.ca/publications/forms-formulaires/b13a-eng.html>
- 7) Bill 119 Mandatory Coverage for the Construction Industry – WSIB
<http://needwsibcoverage.ca/>
- 8) Border Information Service (BIS) – CBSA
<http://www.cbsa-asfc.gc.ca/contact/bis-sif-eng.html>
- 9) Business Registration Online (BRO) – CRA
<http://www.cra-arc.gc.ca/tx/bsnss/tpcs/bn-ne/bro-ide/menu-eng.html>
- 10) Canada Border Services Agency (CBSA) – CBSA
<http://www.cbsa-asfc.gc.ca/menu-eng.html>
- 11) Canada Customs Coding Form B3 – CBSA
<http://www.cbsa-asfc.gc.ca/publications/forms-formulaires/b3-3-eng.html>
- 12) Canada Revenue Agency (CRA) – CRA
<http://www.cra-arc.gc.ca/menu-eng.html>
- 13) Canadian Automated Export Declaration (CAED) – CBSA
<http://www.statcan.gc.ca/exp/index-eng.htm>
- 14) Canadian Export Classification – Statistics Canada
<http://www.statcan.gc.ca/pub/65-209-x/65-209-x2014000-eng.htm>

- 15) Cargo Security Examinations – CBP
<https://www.cbp.gov/border-security/ports-entry/cargo-security>
- 16) CBSA Trade Operations Divisions – CBSA
<http://www.cbsa-asfc.gc.ca/sme-pme/cso-bsc-eng.html>
- 17) Citizenship and Immigration Canada (CIC) – CIC
<http://www.cic.gc.ca/english/index.asp>
- 18) Commercial Carrier and Freight Forwarder Identification and Eligibility - Highway Carriers – CBSA
<http://www.cbsa-asfc.gc.ca/services/carrier-transporteur/hc-tr-eng.html>
- 19) *Customs Act* – Government of Canada
<http://laws-lois.justice.gc.ca/eng/acts/C-52.6/FullText.html>
- 20) *Customs Tariff* – Government of Canada
<http://www.cbsa-asfc.gc.ca/trade-commerce/tariff-tarif/menu-eng.html>
- 21) Directory of CBSA Offices and Services – CBSA
<http://www.cbsa-asfc.gc.ca/do-rb/menu-eng.html>
- 22) *Excise Tax Act*, Part IX, Division III – Government of Canada
<http://laws-lois.justice.gc.ca/eng/acts/e-15/page-86.html>
- 23) Export Controls – Global Affairs Canada
http://www.international.gc.ca/controls-contrôles/about-a_propos/expor/before-avant.aspx?lang=eng
- 24) Export Reporting - No Declaration Required – CBSA
<http://www.cbsa-asfc.gc.ca/export/ndr-adr-eng.html>
- 25) Federally Regulated Businesses and Industries – ESDC
<https://www.canada.ca/en/employment-social-development/programs/employment-equity/regulated-industries.html>
- 26) G7 Electronic Data Interchange Export Reporting – CBSA
<http://www.cbsa-asfc.gc.ca/eservices/g7/exporting-eng.html>
- 27) Guide to the New Schedule to the *Defence Production Act* – PWGSC
<http://ssi-iss.tpsgc-pwgsc.gc.ca/dmc-cgd/directives-guidelines/lpd-dpa-toc-eng.html>
- 28) A Guide to the Occupational Health and Safety Act – MOL
<https://www.labour.gov.on.ca/english/hs/pubs/ohsa/index.php>

- 29) Harmonized Commodity Description and Coding System (HS) – CBSA
<http://www.cbsa-asfc.gc.ca/trade-commerce/tariff-tarif/hcdcs-hsdcm/menu-eng.html>
- 30) Hazard Prevention Program – Labour Program, Canada
http://www.travail.gc.ca/eng/health_safety/prevention/hazard.shtml
- 31) Health and Safety Committees and Representatives – Labour Program, Canada
http://www.travail.gc.ca/eng/health_safety/committees/index.shtml
- 32) Human Resources and Skills Development Canada (HRSDC) – CCSD
<http://www.ccsd.ca/index.php/friends-partners/item/human-resources-and-skills-development-canada>
- 33) Immigration Inspection Program – CBP
<https://www.cbp.gov/border-security/ports-entry/overview>
- 34) Licensed Customs Brokers – CBSA
<http://www.cbsa-asfc.gc.ca/services/cb-cd>
- 35) List of Licensed Customs Brokers – CBSA
<http://www.cbsa-asfc.gc.ca/services/cb-cd/cb-cd-eng.html>
- 36) Maine Revised Statutes – State of Maine
<http://legislature.maine.gov/legis/statutes/26/title26ch4sec0.html>
- 37) Maine Revenue Services – State of Maine
<http://www.maine.gov/revenue/>
- 38) Memoranda Series D List – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d0/d0-17.pdf>
- 39) Memoranda Series D1 to D22 – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/menu-eng.html>
- 40) Memoranda Series D9, *Prohibited Importations* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d9-eng.html>
- 41) Memoranda Series D11, *General Tariff Information* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d11-eng.html>
- 42) Memoranda Series D13, *Valuation* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d13-eng.html>
- 43) Memoranda Series D14, *Special Imports Measures Act* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d14-eng.html>

- 44) Memoranda Series D19, *Acts and Regulations of Other Government Departments* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d19-eng.html>
- 45) Memorandum D 1-4-1, *CBSA Invoice Requirements* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d1/d1-4-1-eng.html>
- 46) Memorandum D1-11-3, *Advance Rulings for Tariff Classification* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d11/d11-11-3-eng.html>
- 47) Memorandum D 2-1-1, *Temporary Importation of Baggage and Conveyances by Non-residents* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d2/d2-1-1-eng.html>
- 48) Memorandum D 6-2-3, *Refund of Duties* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d6/d6-2-3-eng.html>
- 49) Memorandum D 7-4-1, *Duties Relief Program* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d7/d7-4-1-eng.html>
- 50) Memorandum D 7-4-2, *Duty Drawback Program* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d7/d7-4-2-eng.html>
- 51) Memorandum D 7-4-3, *NAFTA Requirements for the Duty Drawback and the Duties Relief Programs* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d7/d7-4-3-eng.html>
- 52) Memorandum D 8-1-1, *Amendments to Temporary Importation (Tariff Item No. 9993.00.00) Regulations* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d8/d8-1-1-eng.html>
- 53) Memorandum D10-13-1, *Classification of Goods* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d10/d10-13-1-eng.html>
- 54) Memorandum D11-3-1, *Marking of Imported Goods* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d11/d11-3-1-eng.html>
- 55) Memorandum D11-4-14, *Certificate of Origin Under Free Trade Agreements* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d11/d11-4-14-eng.html>
- 56) Memorandum D11-4-2, *Proof of Origin of Imported Goods* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d11/d11-4-2-eng.html>
- 57) Memorandum D11-6-6, *“Reason to Believe” and Self-Adjustments to Declarations of Origin, Tariff Classification, and Value for Duty* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d11/d11-6-6-eng.html>

- 58) Memorandum D13-1-2, *Direct Shipment of Goods* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d13/d13-1-2-eng.html>
- 59) Memorandum D17-1-10, *Coding of Customs Accounting Documents* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d17/d17-1-10-eng.html>
- 60) Memorandum D17-1-21, *Maintenance of Records in Canada by Importers* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d17/d17-1-21-eng.html>
- 61) Memorandum D17-1-5, *Registration, Accounting and Payment for Commercial Goods* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d17/d17-1-5-eng.html>
- 62) Memorandum D17-2-1, *Coding of Adjustment Request Forms* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d17/d17-2-1-eng.html>
- 63) Memorandum D20-1-1, *Export Reporting* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d20/d20-1-1-eng.html>
- 64) Memorandum D20-1-4, *Proof of Export, Canadian Ownership, and Destruction of Commercial Goods* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d20/d20-1-4-eng.html>
- 65) Memorandum D20-1-5, *Maintenance of Records and Books in Canada by Exporters and Producers* – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d20/d20-1-5-eng.html>
- 66) Occupational Safety and Health Administration (OSHA) – U.S. Department of Labor
<https://www.osha.gov/about.html>
- 67) Offload Policy for Highway Examinations – CBSA
<http://www.cbsa-asfc.gc.ca/import/notice-avis-eng.html>
- 68) OSHA At-A-Glance – U.S. Department of Labor
<https://www.osha.gov/Publications/3439at-a-glance.pdf>
- 69) Other Government Department and Agencies: Reference List for Exporters – CBSA
<http://www.cbsa-asfc.gc.ca/export/reflist-listeref-eng.html>
- 70) Other Government Departments and Agencies: Reference List for Importers – CBSA
<http://www.cbsa-asfc.gc.ca/import/reflist-listeref-eng.html>
- 71) Protecting Agriculture – CBP
<https://www.cbp.gov/border-security/protecting-agriculture>

- 72) Rules of Origin Regarding the Most-Favoured-Nation (MFN) Tariff – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d11/d11-4-3-eng.html>
- 73) SIMA - Measures in Force – CBSA
<http://www.cbsa-asfc.gc.ca/sima-lmsi/mif-mev-eng.html>
- 74) Special Import Measures Act (SIMA) – Government of Canada
<http://laws-lois.justice.gc.ca/eng/acts/S-15>
- 75) Statistics Canada – Statistics Canada
<http://www5.statcan.gc.ca/subject-sujet/index?lang=eng>
- 76) Step-by-Step Guide to Exporting Commercial Goods from Canada – CBSA
<http://www.cbsa-asfc.gc.ca/export/guide-eng.html>
- 77) Step-by-Step Guide to Importing Commercial Goods into Canada – CBSA
<http://www.cbsa-asfc.gc.ca/import/guide-eng.html>
- 78) Summary Reporting (#34 and #35) – CBSA
<http://www.cbsa-asfc.gc.ca/publications/dm-md/d20/d20-1-1-eng.html>
- 79) Temporary (Nonimmigrant) Workers – USCIS
<https://www.uscis.gov/working-united-states/temporary-nonimmigrant-workers>
- 80) Temporary Admission Permit (form E29B) – CBSA
<http://www.cbsa-asfc.gc.ca/publications/forms-formulaires/e29b-eng.html>
- 81) Temporary Importation of Conveyances – CRA
<http://www.cra-arc.gc.ca/E/pub/gl/p-024r/p-024r-e.html>
- 82) Updated Schedule to the *Defence Production Act* – CBSA
<http://laws-lois.justice.gc.ca/eng/acts/d-1/page-6.html>
- 83) Vessel Duties Reduction or Removal Regulations – Government of Canada
<http://laws-lois.justice.gc.ca/eng/regulations/sor-90-304/index.html>
- 84) What to Expect at the [Canadian] Border – CBSA
<http://www.cbsa-asfc.gc.ca/travel-voyage/web-qaf-eng.html>
- 85) Work in Canada Temporarily – Government of Canada
<http://www.cic.gc.ca/english/work/apply-who.asp>
- 86) Workplace Safety – Labour Program, Canada
http://www.travail.gc.ca/eng/health_safety/workplace/index.shtml